Traditio · Anthony Mercer

The bank moved. Did the title?

Retained river histories, their evidence and its limits.

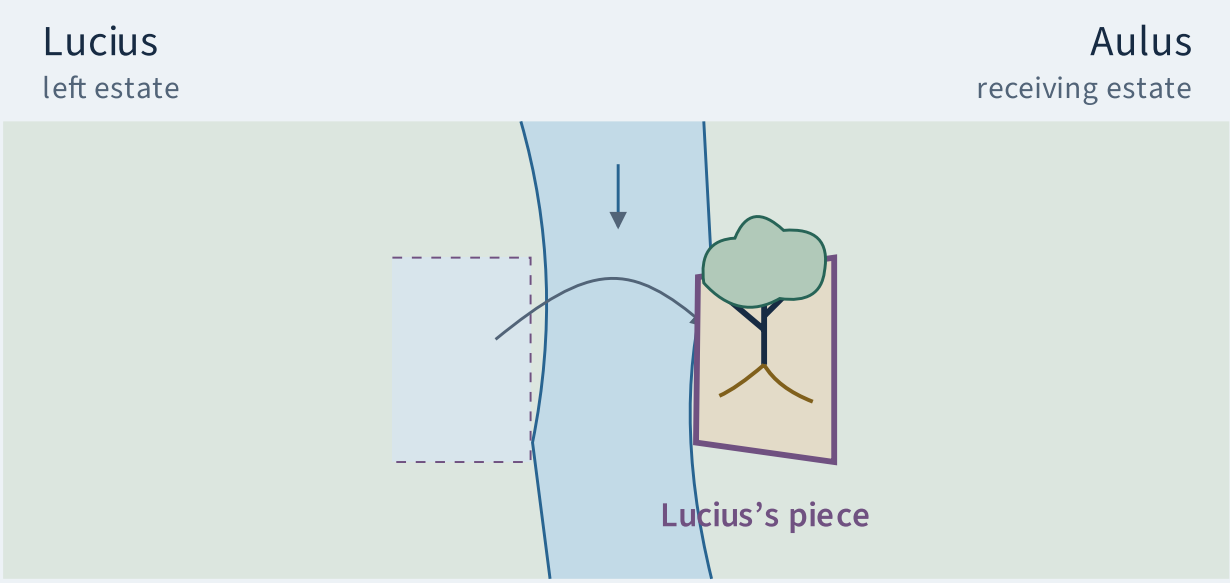
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Pinned history · A piece torn away

Gaius · Institutes 2.70–74. Inspected point: 1 of 1 attempts.

Facts and result at the inspected point

Investigation	A piece torn away
Reading	Gaius · Institutes 2.70–74
Point in history	1 of 1 recorded attempts
At Aulus's bank	Yes
Roots in Aulus's soil	Not established
Long attachment there	Not established
Floodwater	Not part of this case
Ownership of the focus	Lucius
Last express / stipulated owner	Lucius



Schematic · ownership is a separate fact

Brown roots remain within the carried piece. Green roots enter the receiving soil; brass marks indicate long attachment.

The carried piece remains Lucius’s.

The identifiable piece has moved to Aulus’s bank, but haec pars tua manet says that this piece remains yours. Physical arrival alone has not changed its owner.

Gaius · Institutes 2.71

The complete history

Later attempts remain recorded below. They are not applied to the inspected point above.

1. **Carry the torn piece to Aulus’s bank · fact added · inspected point**

   The identifiable piece, including its tree, is now at Aulus’s bank. Its arrival alone does not transfer it.

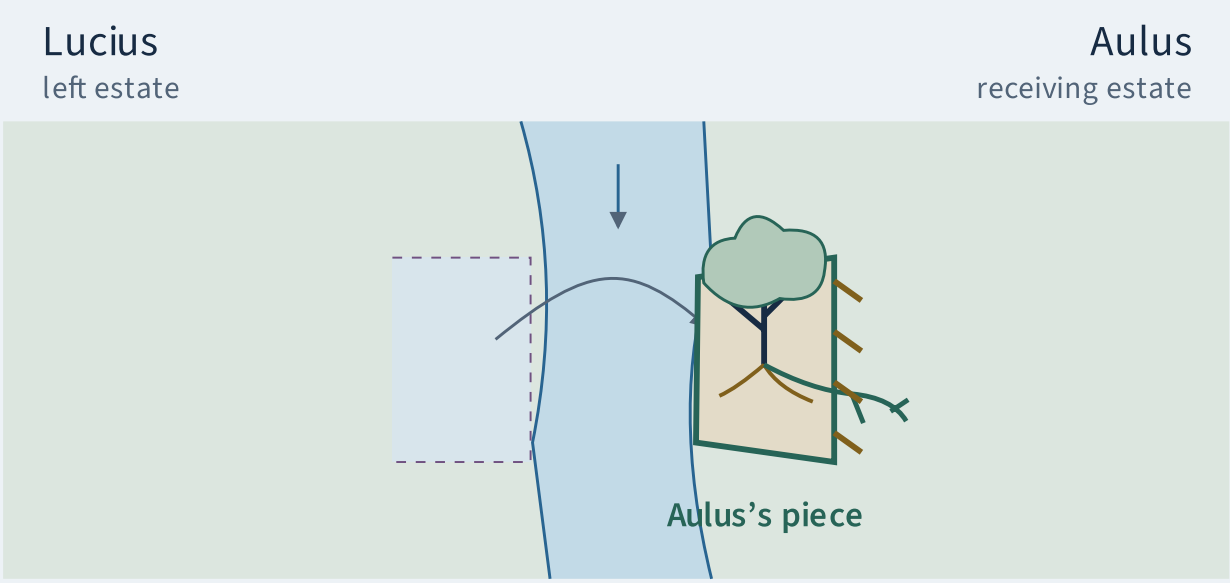
   Ownership: Lucius. The identifiable piece has moved to Aulus’s bank, but haec pars tua manet says that this piece remains yours. Physical arrival alone has not changed its owner. Gaius · Institutes 2.71.

Current history · A piece torn away

Digest · excerpts attributed to Gaius. Inspected point: 3 of 3 attempts.

Facts and result at the inspected point

Investigation	A piece torn away
Reading	Digest · excerpts attributed to Gaius
Point in history	3 of 3 recorded attempts
At Aulus's bank	Yes
Roots in Aulus's soil	Established
Long attachment there	Established
Floodwater	Not part of this case
Ownership of the focus	Aulus
Last express / stipulated owner	Aulus



Schematic · ownership is a separate fact

Brown roots remain within the carried piece. Green roots enter the receiving soil; brass marks indicate long attachment.

The attached piece is acquired for Aulus's land.

Digest 41.1.7.2 adds long attachment and roots in the receiving estate, then says ex eo tempore: from that time. Both facts are now established. No fixed year count is supplied.

Digest 41.1.7.2

The complete history

Later attempts remain recorded below. They are not applied to the inspected point above.

1. **Carry the torn piece to Aulus's bank · fact added**

   The identifiable piece, including its tree, is now at Aulus's bank. Its arrival alone does not transfer it.

   Ownership: Lucius. Arrival preserves Lucius's title. The selected Digest continuation describes acquisition after long attachment and the carried trees taking root. The model has not established both of those conditions. Digest 41.1.7.2.

2. **Establish roots in Aulus's soil · fact added**

   The tree's roots have taken hold in Aulus's soil. For a carried piece, this is distinct from long attachment.

   Ownership: Lucius. Arrival preserves Lucius's title. The selected Digest continuation describes acquisition after long attachment and the carried trees taking root. The model has not established both of those conditions. Digest 41.1.7.2.

3. **Establish long attachment at Aulus's bank · fact added · inspected point**

   Long attachment at the receiving bank is now stipulated. This is a fact supplied by the learner, not a number of years computed by the app.

   Ownership: Aulus. Digest 41.1.7.2 adds long attachment and roots in the receiving estate, then says ex eo tempore: from that time. Both facts are now established. No fixed year count is supplied. Digest 41.1.7.2.

Compare the selected points

Pinned history and current history, at their selected points

Fact or result	Pinned	Current
Investigation	A piece torn away	A piece torn away
Reading	Gaius · Institutes 2.70–74	Digest · excerpts attributed to Gaius
Point in history	1 of 1 recorded attempts	3 of 3 recorded attempts

Fact or result	Pinned	Current
At Aulus's bank	Yes	Yes
Roots in Aulus's soil	Not established	Established
Long attachment there	Not established	Established
Floodwater	Not part of this case	Not part of this case
Ownership of the focus	Lucius	Aulus
Last express / stipulated owner	Lucius	Aulus

Both the physical facts and the selected passages differ. 'Not settled here' reports a limit of those passages, not a demonstrated historical change in law.

Your explanation

At arrival the piece remains Lucius's. The Digest requires long attachment AND new roots; ex eo tempore does not backdate title. This is text.

Retained as written; not graded.

Scope and assumptions

These invented histories apply selected clauses to stipulated facts. The estates are ordinary private river-bounded land, the initial owners have full title, and there is no sale, gift, competing right or usucapion. The drawing assigns no ancient units, surveyed boundaries, real river profile or modern jurisdiction. It concerns ownership, not the legal possession or public use of a bank.

An imperceptible increment is supplied as a fact, not inferred from animation speed. A torn piece retains its identity and carries a tree. The tree's later roots must enter the receiving estate's soil. Long attachment is a separate fact with no computed number of years. A transplanted tree starts lifted and unrooted in the receiving soil. Flooding leaves the field's identity intact and creates no permanent channel.

For the carried parcel, the Digest model establishes the described acquisition when both long attachment and new roots are present. Cases with a treeless piece, other forms of union, contested evidence, removal after accession, boundary-spanning roots, ager limitatus, islands or abandoned beds are not decided. Repeated buttons cannot manufacture time. Rejected attempts stay in the history without changing its facts.

'Not settled here' means that the selected passages do not decide this elaborated history. The last express or stipulated owner is shown separately, not passed off as a final ruling. The Digest's 533 compilation attributes these excerpts to another Gaian work; comparison does not establish a date of legal change, or settle

authorship and textual history. The app does not make the two texts contradict one another.

Ownership alone does not determine remedies or reimbursement. Gaius 2.76, visible on the retained page, discusses expenses and the defence of fraud. These questions are outside the evaluator. New English and phrase explanations have not received independent philological or legal-historical review. Whole scans are modern printed editions, not ancient manuscripts.

Gaius · Institutes 2.70

So gradual that it eludes the eyes

Sed et id quod per adluvionem nobis adicitur eodem iure nostrum fit; per adluvionem autem id videtur adici quod ita paulatim flumen agro nostro adicit, ut aestimare non possimus quantum quoquo momento temporis adiciatur; hoc est quod vulgo dicitur per adluvionem id adici videri quod ita paulatim adicitur, ut oculos nostros fallat.

Close English translation

What is added to us by alluvion also becomes ours by the same law. What the river adds to our field so gradually that we cannot estimate how much is added at each moment is regarded as added by alluvion. This is what people commonly mean when they say that an addition by alluvion is made so gradually as to elude our eyes.

Complete 2.70, spanning printed pages 160–161. Adluvionem follows this edition. A large eventual addition can meet the stated condition: the question concerns what can be distinguished at each moment, not a maximum final area. The app stipulates that condition; it does not measure a real river.

ita paulatim
so gradually. Ita looks ahead to the consequence introduced by ut.

quoquo momento temporis
at each moment of time. The temporal scale of the test, not a limit on the eventual addition.

ut oculos nostros fallat
so as to elude our eyes. Fallere here describes escaping perception. It does not mean that any visibly slow movement is alluvion.

Complete printed pages: Gaius · p. 160, Gaius · p. 161.

This piece remains yours

Itaque si flumen partem aliquam ex tuo praedio resciderit et ad meum praedium pertulerit, haec pars tua manet.

Close English translation

Accordingly, if a river has torn some piece from your estate and carried it to mine, this piece remains yours.

Complete 2.71. In the diagram Lucius supplies ‘your estate’, Aulus ‘mine’. The piece retains its identity across the move. The paragraph does not state what happens after the later attachment conditions in Digest 41.1.7.2. The model leaves that later history unresolved when these Institutes passages alone are selected; it does not assert perpetual ownership.

ex tuo … ad meum
from yours … to mine. Tracks origin and destination separately.

resciderit … pertulerit
has torn away … has carried to. The completed movement is part of the condition. It is not itself a conveyance.

haec pars tua manet
this piece remains yours. Haec pars keeps the identifiable piece in view; manet preserves its former ownership.

Complete printed pages: Gaius · p. 161.

Gaius · Institutes 2.73

The soil rule behind the tree sentence

Praeterea id quod in solo nostro ab aliquo aedificatum est, quamvis ille suo nomine aedificaverit, iure naturali nostrum fit, quia superficies solo cedit.

Close English translation

Moreover, what someone has built on our soil becomes ours by natural law, although he built it on his own account, because the superstructure follows the soil.

Complete 2.73. This gives the antecedent for id accidit in 2.74. The workshop does not model building materials or the remedies and expense questions that follow in 2.76. Acquiring ownership and recovering possession without paying expenses are separate questions.

quamvis
although. The builder’s acting on his own account does not prevent this ownership result.

superficies solo cedit
the superstructure follows the soil. Cedit expresses legal accession here, not a physical movement of the building.

Complete printed pages: Gaius · p. 161.

Provided that it has embraced the earth with roots

Multoque magis id accidit et in planta quam quis in solo nostro posuerit, si modo radicibus terram conplexa fuerit.

Close English translation

Much more does the same occur with a plant that someone has placed in our soil, provided that it has embraced the earth with its roots.

Complete 2.74. Conplexa follows the printed spelling. ‘The same’ refers to accession to the soil in 2.73. This is a planted tree, not a tree carried along with an identifiable piece of somebody’s land. Roots confined to a transported root ball do not establish the workshop’s fact of rooting in the receiving soil.

id accidit
the same occurs. Read the preceding sentence to find which legal result is being carried over.

si modo
provided that. Planting alone does not satisfy this condition.

radicibus terram conplexa
having embraced the earth with roots. Radicibus is instrumental: by means of the roots.

Complete printed pages: Gaius · p. 161.

Digest 41.1.7.1

Another formulation of gradual addition

Praeterea quod per alluvionem agro nostro flumen adicit, iure gentium nobis adquiritur. Per alluvionem autem id videtur adici, quod ita paulatim adicitur, ut intellegere non possimus, quantum quoquo momento temporis adiciatur.

Close English translation

Moreover, what the river adds to our field by alluvion is acquired for us by the law of nations. An addition is regarded as made by alluvion when it is added so gradually that we cannot perceive how much is added at each moment of time.

Complete 41.1.7.1. The Digest, compiled in 533 CE, attributes fragment 7 to book two of Gaius's Res cottidianae sive aurea. This is a different work from the Institutes. The selector changes the passages available to the learner; it does not date the invention of a rule or establish that the law changed between the works.

iure gentium
by the law of nations. The source's legal category, not a claim that every people had an identical rule.

intellegere non possimus
we cannot perceive. Keeps the increment's imperceptibility explicit.

Complete printed pages: Digest · p. 644.

Digest 41.1.7.2

From that time: the additional conditions

Quod si vis fluminis partem aliquam ex tuo praedio detraxerit et meo praedio attulerit, palam est eam tuam permanere. Plane si longiore tempore fundo meo haeserit arboresque, quas secum traxerit, in meum fundum radices egerint, ex eo tempore videtur meo fundo adquisita esse.

Close English translation

But if the force of a river has torn some piece from your estate and brought it to mine, it is clear that it remains yours. If, however, it has adhered to my land for a long time, and the trees which it carried with it have put down roots in my land, from that time it is regarded as acquired for my land.

Complete 41.1.7.2, attributed in the Digest to Gaius's Res cottidianae. Both long attachment and the carried trees rooting in the receiving land are explicit in this sentence. The workshop treats them as separate stipulated facts; either can be established first after arrival. It does not convert longiore tempore into a fixed year count, or decide a treeless parcel, disputed evidence or every route to accession.

palam est … permanere
it is clear … that it remains. The initial consequence agrees with the shorter Institutes paragraph.

longiore tempore … haeserit
has adhered for a long time. Time must concern attachment at the receiving estate. No numeric duration is supplied.

arboresque … radices egerint
and the trees … have put down roots. The conjunction adds the rooting fact; it is not erased by waiting.

ex eo tempore
from that time. Marks the later acquisition, rather than backdating it to arrival.

Complete printed pages: Digest · p. 644.

Digest 41.1.7.13 · opening

Before roots, it remains the former owner’s

Si alienam plantam in meo solo posuero, mea erit: ex diverso si meam plantam in alieno solo posuero, illius erit: si modo utroque casu radices egerit: antequam enim radices ageret, illius permanet, cuius et fuit.

Close English translation

If I have placed another person’s plant in my soil, it will be mine; conversely, if I have placed my plant in another person’s soil, it will be theirs, provided in either case that it has put down roots. Before putting down roots, it remains the property of the person whose it was.

Opening of 41.1.7.13; the omitted continuation considers a neighbour’s tree and shared roots across a boundary. This workshop keeps all new roots within Aulus’s soil. The former-owner statement is express here; the Institutes states rooting as the accession condition. The complete scanned page retains the continuation.

utroque casu
in either case. Both who plants and whose soil it is must be tracked.

antequam
before. Makes the pre-rooting stage explicit.

illius … cuius et fuit
of that person … whose it was. Refers back to the former owner, not automatically to the person holding the plant.

Complete printed pages: Digest · p. 645.

Digest 41.1.7.6

Inundation does not change the field’s identity

Aliud sane est, si cuius ager totus inundatus fuerit: namque inundatio speciem fundi non mutat et ob id, cum recesserit aqua, palam est eiusdem esse, cuius et fuit.

Close English translation

It is certainly different if someone’s entire field has been flooded: inundation does not change the identity of the estate, and therefore, when the water has receded, it plainly belongs to the same person whose it was.

Complete 41.1.7.6. Aliud distinguishes this from the preceding discussion of a river permanently abandoning its bed and taking a new channel. Covering land with floodwater is not silently treated as creating a public riverbed. Those channel changes and allocation of abandoned beds are outside this model.

aliud sane est
it is certainly different. Do not carry over the preceding new-channel result to a flood.

speciem fundi non mutat
does not change the estate’s identity. The ground remains the same estate beneath the water.

eiusdem … cuius et fuit
of the same person … whose it was. The returning view of dry land does not create a new owner.

Complete printed pages: Digest · p. 644.

Editions and textual boundary

The Institutes are Gaius’s second-century textbook, retained in the Poste–Whittuck edition (Oxford, 1904), printed pages 160–161. The Digest was compiled in 533 CE; it attributes fragment 41.1.7 to book two of Gaius’s Res cottidianae sive aurea, a different work. Its retained edition is Mommsen’s Digest in Corpus Iuris Civilis, volume I, sixth stereotype edition (Berlin, 1893), printed pages 644–645. This comparison does not settle authorship, interpolation or the date a particular rule originated.

The new translations join printed line wraps and print consonantal u as v in the Latin. The Gaian spellings adluvionem and conplexa follow the printed edition. The scans retain all omitted surrounding text and the editors’ apparatus.

Gaius · p. 160 · Poste–Whittuck, Oxford, 1904 · complete printed page

tionis et in iure cessionis et usucapionis ius proprium est ciuium Romanorum.

Inst. 2, 1, 11.

§ 66. Nec tamen ea tantum, quae traditione nostra fiunt, | naturali nobis ratione adquiruntur, sed etiam—| occupando ideo——erimus, quia antea nulli|us essent; qualia sunt omnia quae terra mari caelo capiuntur.

§ 67. Itaque si feram bestiam aut uolucrem aut pis|cem —— captum ——|—— eo usque nostrum esse intellegitur, donec nostra custodia coerceatur; cum uero custodiam nostram euaserit et in naturalem *libertatem se re*ceperit, rursus occupantis fit, quia nostrum esse desinit; naturalem autem libertatem recipere uidetur, cum aut oculos nostros euaserit, aut licet in conspectu sit nostro, difficilis tamen eius persecutio sit. Inst. 2, 1, 12.

§ 68. In his autem animalibus quae ex consuetudine abire et redire solent, ueluti columbis et apibus, item ceruis qui in siluas ire et redire solent, talem habemus regulam traditam, ut si reuertendi animum habere desierint, etiam nostra esse desinant et fiant occupantium; reuertendi autem animum uidentur desinere habere, cum reuertendi consuetudinem deseruerint.

Inst. 2, 1, 14.

§ 69. Ea quoque quae ex hostibus capiuntur naturali ratione nostra fiunt.

Inst. 2, 1, 17.

§ 70. Sed et id quod per adluuionem nobis adicitur eodem iure nostrum fit; per adluuiotrate, usucapion, for these are titles confined to citizens of Rome.

§ 66. Another title of natural reason, besides Tradition, is Occupation, whereby things previously the property of no one become the property of the first occupant, as the wild inhabitants of earth, air, and water, as soon as they are captured.

§ 67. For wild beasts, birds, and fishes, as soon as they are captured, become, by natural law, the property of the captor, but only continue such so long as they continue in his power; after breaking from his custody and recovering their natural liberty, they may become the property of the next occupant; for the ownership of the first captor is terminated. Their natural liberty is deemed to be recovered when they have escaped from his sight, or, though they continue in his sight, when they are difficult to recapture.

§ 68. In the case of those wild animals, however, which are in the habit of going away and returning, as pigeons, and bees, and deer, which habitually visit the forests and return, the rule has been handed down, that only the cessation of the intention of returning is the termination of ownership, and then the property in them is acquired by the next occupant; the intention of returning is held to be lost when the habit of returning is discontinued.

§ 69. Capture from an enemy is another title of property by natural law.

§ 70. Alluvion is another natural mode of acquisition. Alluvion is an addition of soil to land by a

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Gaius · p. 161 · Poste–Whittuck, Oxford, 1904 · complete printed page

nem autem *id* uidetur adici quod ita paulatim flumen agro nostro *a*dicit, ut aestimare non possimus quantum quoquo momento temporis adiciatur; hoc est quod uulgo dicitur per adluuionem id adici uideri quod ita paulatim adicitur, ut oculos nostros fallat. Inst. 2, 1, 20.

§ 71. Itaque si flumen partem aliquam ex tuo praedio resciderit et ad meum praedium pertulerit, haec pars tua manet. Inst. 2, 1, 21.

§ 72. At si in medio flumine insula nata sit, haec eorum omnium communis est, qui ab utraque parte fluminis prope ripam praedia possident; si uero non sit in medio flumine, ad eos pertinet qui ab ea parte quae proxima est iuxta ripam praedia habent. Inst. 2, 1, 22.

§ 73. Praeterea id quod in solo nostro ab aliquo aedificatum est, quamuis ille suo nomine aedificauerit, iure naturali nostrum fit, quia superficies solo cedit. Inst. 2, 1, 30.

§ 74. Multoque magis id accidit et in planta quam quis in solo nostro posuerit, si modo radicibus terram conplexa fuerit. Inst. 2, 1, 31.

§ 75. Idem contingit et in frumento, quod in solo nostro ab aliquo satum fuerit. Inst. 2, 1, 32.

§ 76. Sed si ab eo petamus fundum uel aedificium et inpensas in aedificium uel in seminaria uel in sementem factas ei soluere nolimus, poterit nos per exceptionem doli mali repellere, utique si bonae fidei possessor fuerit. Inst. l. c.

river, so gradual that at a particular moment the amount of accretion cannot be determined; or, to use the common expression, an addition made by alluvion is so gradual as to elude our sight.

§ 71. Accordingly a parcel of your land swept away by a river, and carried down to mine, continues your property.

§ 72. An island that rises in the middle of a river is the common property of the proprietors on both banks of the river; if it is not in the middle of the stream, it belongs to the proprietors of the nearer bank.

§ 73. Again, a building erected on my soil, though the builder has made it on his own account, belongs to me by natural law; for the ownership of a superstructure follows the ownership of the soil.

§ 74. The same occurs a fortiori when trees are planted on my land, provided they have struck root.

§ 75. Similarly, when corn is sown on my land.

§ 76. But if I bring an action to recover the land or the building, and refuse to compensate the other party for his outlay on the building or the plantation or the cornfield, he will defeat my action by the plea of fraud, at any rate if he was a bona fide possessor.

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Digest · p. 644 · Mommsen, Corpus Iuris Civilis I, sixth stereotype edition, Berlin, 1893 · complete printed page

LIBER QUADRAGESIMUS PRIMUS.

I[1].

DE ADQUIRENDO RERUM DOMINIO.

1[2] *Gaius libro secundo rerum cottidianarum sive aureorum* Quarundam rerum dominium nanciscimur iure gentium, quod ratione naturali inter omnes homines peraeque servatur, quarundam iure civili, id est iure proprio civitatis nostrae. et quia antiquius ius gentium cum ipso genere humano proditum est[3], opus est, ut de hoc prius referendum sit. 1 Omnia igitur animalia, quae terra mari caelo capiuntur, id est ferae bestiae et volucres[4] pisces, capientium fiunt:

2 *Florentinus libro sexto institutionum* vel quae ex his apud nos sunt edita.

3[2] *Gaius libro secundo rerum cottidianarum sive aureorum* Quod enim nullius est, id ratione naturali 1 occupanti conceditur. Nec interest quod ad feras bestias et volucres, utrum in suo fundo quisque capiat an in alieno. plane qui in alienum fundum ingreditur venandi aucupandive gratia, potest a domino, si is providerit, iure prohiberi ne ingredere- 2 tur[5]. Quidquid autem eorum ceperimus, eo usque nostrum esse intellegitur, donec nostra custodia coercetur: cum vero evaserit custodiam nostram et in naturalem libertatem se receperit, nostrum esse desinit et rursus occupantis fit:

4 *Florentinus libro sexto institutionum* nisi si mansuefacta emitti ac reverti solita sunt.

5[6] *Gaius libro secundo rerum cottidianarum sive aureorum* Naturalem autem libertatem recipere intellegitur, cum vel oculos nostros effugerit vel ita sit in conspectu nostro, ut difficilis sit eius persecutio. 1 Illud quaesitum est, an fera bestia, quae ita vulnerata sit, ut capi possit, statim nostra esse intellegatur. Trebatio placuit statim nostram esse et eo usque nostram videri, donec eam persequamur, quod si desierimus eam persequi, desinere nostram esse et rursus fieri occupantis: itaque si per hoc tempus, quo[7] eam persequimur, alius eam ceperit eo animo, ut ipse[8] lucrifaceret, furtum videri nobis eum commississe. plerique non aliter putaverunt eam nostram esse, quam si eam ceperimus, quia multa accidere possunt, ut eam non capiamus: quod verius est. 2 Apium quoque natura fera est: itaque quae in arbore nostra consederint, antequam a nobis alveo concludantur, non magis nostrae esse intelleguntur quam volucres, quae in nostra arbore nidum fecerint. ideo si alius eas incluserit, [9]earum dominus erit. 3 Favos quoque si quos hae fecerint, sine furto quilibet possidere potest: sed ut supra quoque diximus, qui in alienum fundum ingreditur, potest a domino, si is providerit, iure prohiberi ne ingredere- 4 tur. Examen, quod ex alveo nostro evolaverit, eo usque nostrum esse intellegitur, donec in conspectu nostro est nec difficilis eius persecutio est: 5 alioquin occupantis fit. Pavonum et columbarum fera natura est nec ad rem pertinet, quod ex consuetudine avolare et revolare solent: nam et apes idem faciunt, quarum constat feram esse naturam: cervos quoque ita quidam mansuetos habent, ut in silvas eant et redeant, quorum et ipsorum feram esse naturam nemo negat. in his autem animalibus, quae[10] consuetudine abire et redire solent, talis regula comprobata est, ut eo usque nostra esse intellegantur, donec revertendi animum habeant, quod si[11] desierint revertendi animum habere, desinant nostra esse et fiant occupantium. intelleguntur autem desisse revertendi animum habere tunc, cum rever- 6 tendi consuetudinem deseruerint. Gallinarum et anserum non est fera natura: palam est enim alias esse feras gallinas et alios feros anseres. itaque si quolibet modo anseres mei et gallinae meae turbati turbataeve adeo longius evolaverint, ut ignoremus ubi sint, tamen nihilo minus in nostro dominio tenentur. qua de causa furti nobis tenebitur, qui quid eorum 7 lucrandi animo adprehenderit. Item quae ex hostibus capiuntur, iure gentium statim capientium fiunt:

6[12] *Florentinus libro sexto institutionum* item quae ex animalibus dominio nostro eodem iure subiectis nata sunt[13]:

7[14] *Gaius libro secundo rerum cottidianarum sive aureorum* adeo quidem, ut et liberi homines in servitutem deducantur: qui tamen, si evaserint hostium potestatem, recipiunt pristinam libertatem. Praeterea quod per alluvionem agro nostro flumen adicit, iure gentium nobis adquiritur. per alluvionem autem id videtur adici, quod ita paulatim adicitur, ut intellegere non possimus, quantum quoquo momento 2 temporis adiciatur. Quod si vis fluminis partem aliquam ex tuo praedio detraxerit et meo praedio attulerit[15], palam est eam tuam permanere. plane si longiore tempore fundo meo haeserit arboresque, quas secum traxerit, in meum fundum radices egerint, ex eo tempore videtur meo fundo adquisita 3 esse. Insula quae in mari nascitur (quod raro accidit) occupantis fit: nullius enim esse creditur. in flumine nata (quod frequenter accidit), si quidem mediam partem fluminis tenet, communis est eorum, qui ab utraque parte fluminis prope ripam praedia possident, pro modo latitudinis cuiusque praedii, quae latitudo prope ripam sit: quod si alteri parti proximior sit, eorum est tantum, qui ab ea parte 4 prope ripam praedia possident. Quod si uno latere perruperit flumen et alia[16] parte novo rivo fluere coeperit, deinde infra novus iste rivus in veterem se converterit, ager, qui a duobus rivis comprehensus in formam insulae redactus est, eius est 5 scilicet, cuius et fuit. Quod si toto naturali alveo relicto flumen alias fluere coeperit, prior quidem alveus eorum est, qui prope ripam praedia possident, pro modo scilicet latitudinis cuiusque praedii, quae latitudo prope ripam sit: novus autem alveus eius iuris esse incipit, cuius et ipsum flumen, id est publicus iuris gentium. quod si post aliquod temporis ad priorem alveum reversum fuerit et[17] flumen, rursus novus alveus eorum esse incipit, qui prope ripam eius praedia possident. cuius tamen totum agrum novus alveus occupaverit, licet ad priorem alveum reversum fuerit flumen, non tamen is[18], cuius is ager fuerat[19], stricta ratione quicquam in eo alveo habere potest, quia et ille ager qui fuerat desiit esse amissa propria forma et, quia vicinum praedium nullum habet, non potest ratione vicinitatis ullam partem in eo alveo habere: sed vix est, ut id optineat. 6 Aliud sane est, si cuius ager totus inundatus fuerit: namque inundatio speciem fundi non mutat et ob id, cum recesserit aqua, palam est eiusdem 7 esse, cuius et fuit. Cum quis ex aliena materia speciem aliquam suo nomine fecerit, Nerva et Proculus putant hunc dominum esse qui fecerit, quia

(1) *Sab.* 1...40; *Ed.* 41...58; *Pap.* 59...63; *App.* 64...66. — *Bas.* 50, 1 (2) *ad l.* 1 § 1 *et l.* 3 *cf. Inst.* 2, 1, 12 (3) antiquius ius gentium est cum ipso genere humano proditum *scr.* (4) et *ins. Inst.* (5) ingrediatur *Inst.* (6) *cf. Inst.* 2, 1, 12...17 (7) quod F^2 (8) eam *ins.* F^2 (9) is *ins. Inst.* (10) e *ins.* F^2 (11) si *om. F* (12) *cf. Inst.* 2, 1, 19 (13) Item ea, quae ex animalibus dominio tuo subiectis nata sunt, eodem iure tibi adquiruntur *Inst.* (14) *cf. Inst.* 2, 1, 17...31 (15) appulerit *Inst.* (16) aliqua *Inst.* (17) et *del. Inst.* (18) is *del.* F^2 (19) is cuius is ager fuerat *del Menge*

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quod factum est, antea nullius fuerat. Sabinus et Cassius magis naturalem rationem efficere putant, ut qui materiae dominus fuerit, idem eius quoque, quod ex eadem materia factum sit, dominus esset, quia sine materia nulla species effici possit: veluti si ex auro vel argento vel aere[1] vas aliquod fecero, vel ex tabulis tuis navem aut armarium aut subsellia fecero, vel ex lana tua vestimentum, vel ex vino et melle tuo mulsum, vel ex medicamentis tuis emplastrum aut collyrium, vel ex uvis aut olivis aut spicis tuis vinum vel oleum vel frumentum. est tamen etiam media sententia recte existimantium, si species ad materiam reverti possit, verius esse[2], quod et[3] Sabinus et Cassius senserunt, si non possit reverti, verius esse, quod Nervae et Proculo placuit. ut ecce vas conflatum ad rudem massam auri vel argenti vel aeris reverti potest, vinum vero vel oleum vel frumentum ad uvas et olivas et spicas reverti non potest: ac ne mulsum quidem ad mel et vinum vel emplastrum aut collyria ad medicamenta reverti possunt. videntur tamen mihi recte quidam dixisse non debere dubitari, quin alienis spicis excussum frumentum eius sit, cuius et spicae fuerunt: cum enim grana, quae spicis continentur, perfectam habeant suam speciem, qui excussit spicas, non novam 8 speciem facit, sed eam quae est detegit. Voluntas duorum dominorum miscentium materias commune totum corpus efficit, sive eiusdem generis sint materiae, veluti vina miscuerunt vel argentum conflaverunt, sive diversae, veluti si alius vinum contulerit alius mel, vel alius aurum alius argentum: quamvis et mulsi et electri novi corporis sit species. 9 Sed et si sine voluntate dominorum casu confusae sint duorum materiae vel eiusdem generis vel 10 diversae, idem iuris est. Cum in suo loco aliquis aliena materia aedificaverit, ipse dominus intellegitur aedificii, quia omne quod inaedificatur solo cedit. nec tamen ideo is qui materiae dominus fuit desiit eius dominus esse: sed tantisper neque vindicare eam potest neque ad exhibendum de ea agere propter legem duodecim tabularum, qua cavetur, ne quis tignum alienum aedibus suis iunctum eximere cogatur, sed duplum pro eo praestet. appellatione autem tigni omnes materiae significantur, ex quibus aedificia fiunt. ergo si aliqua ex causa dirutum sit aedificium, poterit materiae dominus nunc eam vin- 11 dicare et ad exhibendum agere. Illud recte quaeritur, an, si id aedificium vendiderit is qui aedificaverit et ab emptore longo tempore captum postea dirutum sit, adhuc dominus materiae vindicationem eius habeat. causa dubitationis est, an eo ipso, quo[4] universitas aedificii longo tempore capta est, singulae quoque res, ex quibus constabat, captae 12 essent: quod non placuit. Ex diverso si quis in alieno solo sua materia aedificaverit, illius fit aedificium, cuius et solum est et, si scit alienum solum esse, sua voluntate amississe proprietatem materiae intellegitur: itaque neque diruto quidem aedificio vindicatio eius materiae competit. certe si dominus soli petat aedificium nec solvat pretium materiae et mercedes fabrorum, poterit per exceptionem doli mali repelli, utique si nescit qui aedificavit alienum esse solum et tamquam in suo bona fide aedificavit: nam si scit, culpa ei obici potest, quod temere aedi- 13 ficavit in eo solo, quod intellegeret alienum. Si alienam plantam in meo solo posuero, mea erit: ex diverso si meam plantam in alieno solo posuero, illius erit: si modo utroque casu radices egerit: antequam enim radices ageret, illius permanet, cuius et fuit. his conveniens est, quod, si vicini arborem ita terra presserim, ut in meum fundum radices egerit, meam effici arborem: rationem enim non permittere, ut alterius arbor intellegatur, quam cuius[5] fundo radices egisset. et ideo prope confinium arbor posita, si etiam in vicinum fundum radices egerit, communis est

8 *Marcianus libro tertio institutionum* pro regione 1 cuiusque praedii. Sed et si in confinio lapis nascatur et[6] sunt pro indiviso communia praedia, tunc erit lapis pro indiviso communis, si terra exemptus sit.

9[7] *Gaius libro secundo rerum cottidianarum sive*[8] *aureorum* Qua ratione autem plantae quae terra coalescunt solo cedunt, eadem ratione frumenta quoque quae sata sunt solo cedere intelleguntur. ceterum sicut is, qui in alieno solo aedificavit, si ab eo dominus soli petat aedificium, defendi potest per exceptionem doli mali, ita eiusdem exceptionis auxilio tutus esse poterit, qui in alienum fundum sua im- 1 pensa consevit. Litterae quoque licet aureae sint, perinde chartis membranisque cedunt, ac solo cedere solent ea quae aedificantur aut seruntur. ideoque si in chartis membranisve tuis carmen vel historiam vel orationem scripsero, huius corporis non ego, sed tu dominus esse intellegeris. sed si a me petas tuos libros tuasve membranas nec impensas scripturae solvere velis, potero me defendere per exceptionem doli mali, utique si bona fide eorum posses- 2 sionem nanctus sim. Sed non uti litterae chartis membranisve cedunt, ita solent picturae tabulis cedere, sed ex diverso placuit tabulas picturae cedere. utique tamen conveniens est domino tabularum adversus eum qui pinxerit, si is tabulas possidebat[9], utilem actionem dari, qua ita efficaciter experiri poterit, si picturae impensam exsolvat: alioquin nocebit ei doli mali exceptio: utique si bona fide possessor fuerit qui solverit[10]. adversus dominum vero tabularum ei qui pinxerit rectam vindicationem competere dicimus, ut tamen pretium tabularum inferat: alioquin nocebit ei doli mali exceptio. 3 Hae quoque res, quae traditione nostrae fiunt, iure gentium nobis adquiruntur: nihil enim tam conveniens est naturali aequitati quam voluntatem domini volentis rem suam in alium transferre ratam haberi. 4 Nihil autem interest, utrum ipse dominus per se tradat alicui rem an voluntate eius aliquis[11]. qua ratione, si cui libera negotiorum administratio ab eo qui peregre proficiscitur permissa fuerit et is ex negotiis rem vendiderit et tradiderit, facit eam acci- 5 pientis. Interdum etiam sine traditione nuda voluntas domini sufficit ad rem transferendam, veluti si rem, quam commodavi aut locavi tibi aut apud te deposui, vendidero tibi: licet enim ex ea causa tibi eam non tradiderim, eo tamen, quod patior eam ex causa emptionis apud te esse, tuam efficio. 6 Item si quis merces in horreo repositas vendiderit, simul atque claves horrei tradiderit emptori, trans- 7 fert proprietatem mercium ad emptorem. Hoc amplius interdum et in incertam personam collocata voluntas domini transfert rei proprietatem: ut ecce qui missilia iactat in vulgus, ignorat enim[12], quid eorum quisque excepturus sit, et tamen quia vult quod quisque exceperit eius esse, statim eum domi- 8 num efficit[13]. Alia causa est earum rerum, quae in tempestate maris levandae navis causa eiciuntur: hae enim dominorum permanent, quia non eo animo eiciuntur, quod quis eas habere non vult, sed quo magis cum ipsa nave periculum maris[14] effugiat. qua de causa si quis eas fluctibus expulsas vel etiam in ipso mari nanctus lucrandi animo abstulerit, furtum committit.

10 *Idem libro secundo*[15] *institutionum* Adqui-

(1) tuo *ins. edd.* (2) esset *F* (3) et *del.* (4) quod *scr.* (5) in *ins. F*[2] (6) et] nec *scr.* (*similiter Cuiacius*) (7) *cf. Inst.* 2, 1, 32...48 (8) sine *F* (9) possideat *edd.* (10) *requiritur* qui pinxerit (*sic S*) (11) alius *Inst.* (12) enim *del. Inst.* (13) Qua ratione verius esse videtur et si rem pro derelicto a domino habitam occupaverit quis, statim eum dominum effici: pro derelicto autem habetur, quod dominus ea mente abiecerit, ut id rerum suarum esse nollet, ideoque statim dominus esse desinit *ins. Inst.* (14) maris *Inst.*, navis *F* (15) § 86...93; *cf. Inst.* 2, 9 *pr.* — § 4

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compilation to Gaius, book two of Res cottidianae sive aurea. The Digest
was compiled in 533 CE; these are not extra paragraphs of Gaius's Institutes.
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Latin page evidence: Corpus Iuris Civilis, volume I, Editio stereotypa sexta,
Institutiones recognovit Paulus Krueger; Digesta recognovit Theodorus Mommsen.
Berlin: Weidmann, 1893 (MDCCCXCIII on the scanned title page; the Archive
catalogue field says 1892). Complete printed pages 644-645.
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